

1.5 VISUAL AND ACOUSTIC PRIVACY

Objectives

- (a) To ensure that development does not unreasonably impact upon existing residential or other properties due to unacceptable loss of privacy or generation of noise.
- (b) To minimise the impact of roof terraces on adjoining properties.
- (c) To ensure that development provides residents with a reasonable level of acoustic and visual privacy.
- (d) To minimise the provision of roof terraces where it is uncharacteristic of the area.

Controls

- (a) Development is to consider the Privacy Planning Principle in *Super Studio v Waverley Council [2004] NSWLEC 91* at 5-7.
- (b) Windows to habitable rooms are not to directly face windows to habitable rooms and / or open space of neighbouring dwellings unless direct views are screened or other appropriate measures are incorporated into the design.
- (c) In order to protect the visual and acoustic privacy of adjoining properties and to maintain an appropriate aesthetic quality of development, external stairs are not acceptable.
- (d) Where an elevated courtyard, balcony, terrace or deck is visually prominent from, or in close proximity to, a neighbouring dwelling, permanent screening, landscaping and vegetation is to be used in combination to minimise any impacts to an acceptable level.
- (e) Where an elevated deck or balcony is proposed it should have a maximum area of 10m² and a maximum depth of 1.5m. Where a larger area is proposed then greater consideration must be given to the following:
 - (i) Compliance with the building height development standard;
 - (ii) Compliance with setback controls;
 - (iii) Efforts to mitigate visual and acoustic privacy impacts including the use of permanent screening devices, increased setbacks, and retention of existing vegetation;
 - (iv) Pre-existing pattern of development in the vicinity of elevated decks and balconies; and
 - (v) The visual impact of the elevated deck or balcony and any proposed privacy screening in terms of bulk and scale as viewed from the private open space and living areas of adjoining properties and from the street.
- (f) Roof tops are to be non-trafficable and not capable of being used as roof terraces or as entertainment areas, except in the following circumstances:
 - (i) There is a predominance of roof terraces in the immediate vicinity of the site;
 - (ii) They will not result in unreasonable amenity impacts such as overlooking and loss of privacy and acceptable noise;
 - (iii) They are not to exceed 15m² in area;
 - (iv) They are provided for casual and infrequent activity and not as an extension of private open space or entertaining areas; and
 - (v) Any access must be provided within the envelope of the main building and there are to be no access hoods or lift overruns proposed above the